



CHAPTER xxiii.

An Act for changing the system of audit of accounts for A.D. 1919.
the borough of Reigate and for other purposes.

[22nd July 1919.]

WHEREAS the borough of Reigate in the county of Surrey (in this Act called "the borough") is a municipal borough under the management and control of the mayor aldermen and burgesses of the borough (in this Act called "the Corporation") and the Corporation acting by the council of the borough are the urban sanitary authority for the district of the borough under the Public Health Acts:

And whereas the accounts of the borough are at present audited by two elective auditors and a mayor's auditor in accordance with the enactments in that behalf of the Municipal Corporations Act 1882 and section 246 of the Public Health Act 1875:

And whereas it is expedient that the system of audit should be changed and that the accounts should be audited by a district auditor appointed by the Local Government Board in like manner as accounts of an urban sanitary authority other than the council of a borough are audited under the provisions in that behalf of the Public Health Acts:

And whereas it is expedient to enlarge the powers of the Corporation with respect to the borrowing of money and the payment of expenses in respect of matters connected with the borough as in this Act provided:

And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

A.D. 1919.

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the approval of the Local Government Board has been obtained:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title.

1. This Act may be cited as the Reigate Corporation Act 1919.

Interpretation.

2. In this Act the several words and expressions to which meanings are assigned by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires:—

“The Corporation” means the mayor aldermen and burgesses of the borough of Reigate;

“The borough” means the borough of Reigate;

“The council” means the council of the borough;

“The mayor” “the town clerk” and “the treasurer” mean respectively the mayor the town clerk and the treasurer of the borough and respectively include any person duly authorised to discharge temporarily the duties of those offices;

“The borough fund” and “the district fund” mean respectively the borough fund and the district fund of the borough;

“Revenues of the Corporation” includes the revenues of the Corporation from time to time arising from any land undertakings or other property for the time being of the Corporation and the rates or contributions leviable by or on the order or precept of the Corporation.

Audit of accounts of Corporation.

3.—(1) From and after the thirty-first day of March one thousand nine hundred and twenty sections 25 26 and 27 of the Municipal Corporations Act 1882 and section 246 of the Public Health Act 1875 shall cease to apply to any accounts of the Corporation or of the treasurer or of the officers of the

Corporation and all accounts of the Corporation and of the treasurer and the officers of the Corporation under any public or private Act of Parliament or otherwise relating to matters dealt with by the Corporation in any capacity and including the accounts of any joint committee and of the officers of any joint committee appointed by the Corporation with the council of another borough or with a county council or with a district council or a parish council shall be audited by a district auditor appointed by the Local Government Board in like manner as accounts of an urban authority and their officers are audited under sections 247 and 250 of the Public Health Act 1875 and those sections and all enactments amending them or applying to audit by district auditors including the enactments imposing penalties and providing for the recovery of sums as well as all enactments relating to matters incidental to or consequential upon any such accounts or audit shall apply in like manner as if so far as they relate to an audit of the accounts of an urban authority and the officers of that authority they were herein re-enacted with the necessary modifications and accordingly all burgesses of the borough and all ratepayers and owners of property in the borough shall have the like rights and there shall be the same appeal as in the case of that audit. Provided that for the purposes of this section the First Schedule to the District Auditors Act 1879 shall be modified in the manner described in the Second Schedule to the Local Government Act 1888.

A.D. 1919.
—

(2) Nothing in subsection (1) of this section shall apply to the audit of the accounts of the Corporation for the financial year ending the thirty-first day of March one thousand nine hundred and twenty.

4.—(1) The Corporation may from time to time for the purpose of providing temporarily for any current expenses that may be incurred by them in the execution of any Act of Parliament or Provisional Order confirmed by or under any Act of Parliament borrow by way of temporary loan or overdraft from any bank and in either case at such rate of interest as they may determine such sum as they may from time to time resolve not exceeding in the aggregate at any time an amount equal to one-third of the total aggregate amount of the before-mentioned expenses for the immediately preceding financial year.

As to temporary borrowing.

(2) Any amount borrowed under this section together with the interest thereon shall form a charge upon all the funds

A.D. 1919. properties rates and revenues of the Corporation *pari passu* with all other mortgages stock or other securities affecting the same.

(3) All sums borrowed by the Corporation under this section in respect of the current expenses of any financial year shall be repaid out of the revenue received by the Corporation in respect of such year.

(4) When the Corporation borrow money under this section—

(a) The treasurer shall within forty-two days after the end of each financial year furnish to the Local Government Board a special report showing precisely the operation of the powers of this section during such year and such report shall be in such form and shall contain such information as that Board shall approve or require :

(b) The Local Government Board may make such investigation as may be necessary to satisfy themselves that the requirements of this section have been complied with and if it appear to the Local Government Board by the said report or by such investigation that the Corporation have failed to comply with the requirements of this section that Board may by order suspend the operation of the powers of this section for such period as they may think fit.

(5) The provisions of this section limiting the amount of the sums which the Corporation may borrow and the provisions of subsection (3) of this section requiring the repayment thereof out of the revenue referred to in that subsection shall not affect any lender or his security for the loan or overdraft and the interest thereon respectively or his right to obtain payment thereof from the Corporation.

(6) The provisions of this section shall cease to be in force at the expiration of five years from the thirty-first day of March one thousand nine hundred and twenty unless they shall have been continued by Act of Parliament or by any order made by the Local Government Board which order that Board are hereby empowered to make and in the event of that Board making any such order they are hereby empowered to make such modifications or amendments in the provisions of this section as may appear to them to be necessary.

5. The Corporation may out of the borough fund—

A.D. 1919.

- (a) Pay reasonable subscriptions whether annually or otherwise to the funds of any association of municipal corporations or other local authorities formed for the purpose of consultation as to their common interests and the discussion of matters relating to local government and any reasonable expenses of the attendance of any members or officers of the Corporation not exceeding in any case four at conferences or meetings of the said associations or any of them and of purchasing reports of the proceedings of any such conferences or meetings;
- (b) Pay the reasonable expenses of the Corporation not exceeding the sum of twenty-five pounds in each case in connexion with the presentation of the freedom of the borough to any person whom they resolve to admit as an honorary freeman;
- (c) Make reasonable subscriptions not exceeding in the whole twenty guineas in any one year to the funds of any hospital infirmary nursing institution convalescent home or other institution of a similar character; and
- (d) Pay the reasonable expenses incurred by the Corporation in providing public entertainments on the occasion of public ceremony or rejoicing and in the reception and entertainment of distinguished persons residing in or visiting the borough:

Power to pay certain subscriptions and expenses out of borough fund.

Provided that no payment shall be made by the Corporation in respect of any of the matters mentioned in either of the foregoing paragraphs (b) and (d) unless such payment shall have been duly authorised to be made in each case by a resolution passed at a meeting of the council by a majority of not less than two-thirds of the whole number of the Council.

6.—(1) The Corporation may if they think fit in cases not within the Workmen's Compensation Act 1906 or the School Teachers (Superannuation) Act 1918 grant a gratuity of any sum (not exceeding one year's pay) to any of their officers servants or workmen who may be disabled or injured in their service or may become incapacitated through age sickness or other infirmity or to the widow or family of any such officer servant or workman who may die in their service.

Power to grant gratuities in certain cases.

A.D. 1919.

(2) Every such gratuity shall be charged on and paid out of the fund or funds on or out of which the salary wages or emoluments of such officer servant or workman would have been charged or paid if he had continued in his office or service.

(3) In and for the purposes of this section the expression "officers servants or workmen" shall include any teacher who at the date of the passing of this Act is or shall thereafter be permanently and exclusively employed by the Corporation as the local education authority for the borough or permanently and exclusively employed in any public elementary school in the borough (whether provided by the Corporation as the local education authority or not so provided) or permanently and exclusively employed in any school college or hostel provided by the Corporation as the local education authority for the purposes of Part II. of the Education Act 1902.

Evidence of
appoint-
ments autho-
rity &c.

7. Where in any legal proceedings taken by or on behalf of or against the Corporation or any officer servant solicitor or agent of the Corporation or any committee of the council under this Act or under any general or local Act for the time being in force in the borough it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Corporation or of any committee of the council or to prove any resolution or order of the council or any resolution order or report of any committee of the council a certificate of such appointment authority resolution order or report purporting to be authenticated by the signature of the mayor or of the town clerk shall be *prima facie* evidence of such appointment authority resolution order or report without further proof of the holding of any meeting or the production of any minute book or other record or document.

Costs of Act.

8. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed and ascertained by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the district fund or out of the borough fund or out of both of them in such proportions as the Corporation may by resolution determine.

Printed by EYRE and SPOTTISWOODE, LTD.,

FOR

WILLIAM RICHARD CODLING, Esq., C.B.E., M.V.O., the King's Printer of Acts of Parliament.

To be purchased through any Bookseller or directly from

H.M. STATIONERY OFFICE at the following addresses:

IMPERIAL HOUSE, KINGSWAY, LONDON, W.C.2, and 28, ABINGDON STREET, LONDON, S.W.1;

37, PETER STREET, MANCHESTER; 1, ST. ANDREW'S CRESCENT, CARDIFF;

23, FORTH STREET, EDINBURGH;

or from E. PONSONBY, LTD., 116, GRAFTON STREET, DUBLIN.